

Court No. - 29

Case :- WRIT - C No. - 49419 of 2009

Petitioner :- Dhirendra Pratap Singh

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rajesh Pathik

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Heard Sri Rajesh Pathik, learned counsel for the petitioner. Sri Pankaj Kumar Shukla, appears for the respondent no. 2 and 3.

In a checking made by the inspecting staff of the Executive Engineer, respondent no. 3, the petitioner was found running a factory manufacturing polythene bags, with the help of a 10 HP motor behind his house through domestic electricity connection. A first information report was lodged and a provisional assessment was served upon the petitioner. The petitioner filed a reply on 20-3-2009. By the final assessment order dated 5-5-2009, the provisional assessment has been confirmed, and a recovery certificate has been sent, to realise Rs. 5,91,363/- from the petitioner.

It is contended by Sri Pathik that the police has submitted a final report in the theft case and that the procedure of checking, and inspection and assessment was not followed before initiating recovery proceedings.

The petitioner was subjected to a provisional and final assessment after giving opportunity of hearing. Prima facie the procedure provided under para 8.1(b) of the U.P. Electricity Supply Code, 2005 has been followed by the respondents. If the petitioner has any grievance, he may raise the same in statutory appeal under section 127 of the Indian Electricity Act, 2003.

The writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 16.9.2009

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